

26PR00650 Matter of Rosati Family Revocable Trusted dated September 1, 1997

County: sonoma

Division: Probate

Hearing date: 2026-08-28

Motion: Petition to Appoint Successor Trustee

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Petition to Appoint Successor Trustee

Tentative Ruling: The matter is CONTINUED to December 18, 2026 at 9:30 a.m. in Department 63 for the reasons set forth below.

The 2020 Amendment to the Survivor's Trust and Seventh Amendment to The Rosati Family Trust provides that after Lina M. Rosati fails to act as Trustee, then Jean McClune and Dana M. Conklin shall serve as Co-Trustees. (See Seventh Amendment to the Rosati Family Trust; Amendment to Survivor's Trust, Section 8.1(a).) Even though Jean McClune and Dana M. Conklin have already served as Co-Trustees, they only resigned to allow Lina Rosati to serve as Trustee and withdraw her prior declination to serve. Thus, Lina Rosati was the last Trustee, and the Trust requires appointment of Jean McClune and Dana M. Conklin as Successor Co-Trustees. Neither was served with notice of this petition as required by Probate Code section 17203(a)(1). In the alternative, Petitioner also did not file declinations to serve as Successor Co-Trustees from Jean McClune and Dana M. Conklin.

The Petitioner claims that he is the successor in interest of Lina M. Rosati to the Rosati Family Revocable Trust because he is the acting Trustee and sole residuary beneficiary of the Lina M. Rosati Revocable Living Trust and he is the nominated executor of Lina M. Rosati's Will. (Petition, ¶¶ 10, 13.) He claims this relation makes him eligible to be appointed as Successor Trustee of The Rosati Family Revocable Trust. However, the petition does not include a copy of the July 18, 2024, Declaration of Trust or Lina Rosati's Will. Furthermore, the petition does not argue or provide evidence that the Survivor's Trust and Exemption Trust were distributed to Lina during her lifetime. The Trust names contingent beneficiaries if Lina is not living at the time of distribution. Without clarification of distribution to Lina, the contingent beneficiaries would be entitled to notice pursuant to Probate Code section 17203(a)(2), which was not given. These contingent beneficiaries entitled to notice include: Emilio Chiuchiarelli, Ottavio D'Angelo, Duane P. Sartori, Alfred Mello, Humane Society of Sonoma County, Hospice of Petaluma, Petaluma Educational Foundation, Santa Rosa Junior College Foundation, and Petaluma Community Foundation.

Petitioner is also ordered to provide evidence of his relation to Mary Rosati. Mary's daughter, Louise Purtil, and her issue are disinherited from the Trust and Mary's Will, which weighs into the Court's determination if Stephen Purtil Jr. is fit to be Successor Trustee of The Rosati Family Revocable Trust. The Court takes judicial notice on its own motion of the entire register of actions of a related Sonoma County Case, SPR092035, Matter of Mary Rosati Trust, pursuant to Evidence Code section 452(d) to provide a fuller background for the instant action. It would appear, based on information in that case, that petitioner is the child of Louise and is specifically disinherited as a beneficiary of the trust to which he seeks appointment as trustee.

Petitioner is also ordered to address by verified supplement the fact that all attempted amendments after the death of the first settlor to die are ineffective to amend anything other than the survivor's trust. The subsequent amendments do not appear to distinguish between the exemption or marital trust(s), which became irrevocable upon the death of the first settlor, and the survivor's trust. While the provisions amended were generally in the survivor's trust, this may still have the effect of requiring separate trustees for the subtrust(s), at a minimum. The petitioner must address the effect this has on the present request by distinguishing between the survivor's trust and other irrevocable trust(s) created upon the death of the first settlor. In addition, the petitioner should address the funding of the subtrusts and beneficiaries under the irrevocable subtrusts for the purpose of establishing to whom notice is required.

Finally, the Court observes that it appears the drafting attorney, Duane Sartori, is also a beneficiary under the testamentary document he drafted. Specifically, he is bequeathed the Rolex of the surviving settlor's husband in the event that Lina predeceased her. (Trust, p. 80/86.) In the Amendment to the Survivor's Trust, the surviving settlor bequeaths real property in Keaau, Hawaii, to Duane P. Sartori. (Trust, p. 75/86.) The 2020 Amendment and 2020 Will are the first instance where counsel Sartori becomes a contingent beneficiary. This raises concerns under Probate Code sections 6112 (interested witness) and 21380 (drafter-beneficiary) and rule 1.8.3 of the California Rules of Professional Conduct (gifts from clients). Under the interested witness rule, there is a presumption that the witness (Sartori) procured the devise by duress, menace, fraud, or undue influence and it would be Sartori's burden to overcome this presumption. (Prob. Code § 6112(c)–(d).) Under Section 21380, there is a conclusive presumption of fraud or undue influence when a provision of an instrument makes a donative transfer to the person who drafted the instrument (Prob. Code §§ 21380(a)(1), (c); see also *Butler v. LeBouef* (2016) 248 Cal.App.4th 198, 208.) In fact, this statute was created by the Legislature in response to this very practice by an attorney on an egregious scale. Violation of the Rules of Professional Conduct, rule 1.8.3, would also result in a referral to the State Bar. The Court would also necessarily have to consider whether counsel should be disqualified in this matter. Petitioner's counsel is directed to respond to the above concerns by sworn declaration. Should this petition be voluntarily dismissed without these concerns being addressed by counsel, the Court will simply make a referral to the State Bar for their further investigation. No referral is made at this time.

All supplemental information shall be filed no later than 20 days before the December 18th hearing.